

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3984 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Trey Caldwell

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3984

By: Caldwell (Trey)

FLOOR SUBSTITUTE

An Act relating to workforce recruitment; creating the Oklahoma Talent Attraction and Relocation Act; assigning administration to the Oklahoma Department of Commerce; stating purpose; defining terms; limiting administration to the availability of funds; authorizing grant incentives; limiting grant incentives; providing disbursement methodology; establishing criteria for eligibility and consideration; authorizing standard and process for repayment by recipient; requiring certain periodic reporting; establishing required content of reports; requiring certain audits under certain conditions; authorizing the promulgation of rules; creating the Oklahoma Talent Attraction and Relocation Revolving Fund; establishing revolving fund nature and characteristics; assigning the fund to the Oklahoma Department of Commerce; authorizing and limiting the expenditure of funds; providing budgetary procedures; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 5160.1 of Title 74, unless there is created a duplication in numbering, reads as follows:

1 A. This act shall be known and may be cited as the "Oklahoma
2 Talent Attraction and Relocation Act".

3 B. There is hereby created within the Oklahoma Department of
4 Commerce the "Oklahoma Talent Attraction and Relocation Program", to
5 be administered by the Department for the purpose of awarding grants
6 to support talent recruitment programs that incentivize households
7 to relocate to Oklahoma from outside the state.

8 C. As used in this section:

9 1. "Eligible applicant" means:

10 a. a municipality with a population of fewer than one

11 hundred fifty thousand (150,000) persons according to

12 the most recent Federal Decennial Census,

13 b. a county with a population of fewer than five hundred

14 thousand (500,000) persons according to the most

15 recent Federal Decennial Census, or

16 c. a nonprofit corporation whose primary purpose includes

17 economic development, workforce development, or

18 community development;

19 2. "Department" means the Oklahoma Department of Commerce;

20 3. "Household" means a group of one or more individuals who
21 dwell together within the same dwelling; and

22 4. "Household goal" means the total number of households that a
23 talent recruitment program seeks to successfully incentivize to
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1 relocate or commit to relocate from outside this state to a
2 municipality in this state.

3 D. Subject to availability of funds, the Department may award
4 grants to eligible applicants for the administration of talent
5 recruitment programs and for costs associated with incentivizing
6 households to relocate from outside this state to establish
7 residency within this state. No single grant awarded pursuant to
8 this subsection shall exceed Two Hundred Fifty Thousand Dollars
9 (\$250,000.00).

10 E. To the extent funds are available, the Department shall
11 disburse fifty percent (50%) of the total grant amount upon
12 execution of a grant contract and fifty percent (50%) of the total
13 grant amount upon verification that the recipient has successfully
14 met at least one-half of the household goal stated in the approved
15 talent recruitment program plan. If the recipient fails to meet at
16 least one-half of its stated household goal, the remaining portion
17 of the grant shall not be disbursed.

18 F. To be considered for a grant, an eligible applicant shall
19 submit to the Department a written talent recruitment program plan
20 that includes:

21 1. The total estimated cost of the program including the
22 estimated costs associated with program design, administration,
23 marketing, and relocation incentive initiatives;

24 2. The household goal and the grant amount per household;

1 3. The estimated state and local tax impact;

2 4. The estimated total economic impact; and

3 5. Evidence that the proposed incentives do not duplicate
4 existing state or local relocation programs serving the same
5 households or geographic area.

6 G. The applicant shall demonstrate the ability to contribute at
7 least twenty percent (20%) of the total cost of the talent
8 recruitment program, which may include local investments and in-kind
9 donations. An applicant that has previously received a grant under
10 this section shall not be eligible for an additional grant unless
11 the applicant has met or exceeded the household goal stated in its
12 prior approved talent recruitment program plan.

13 H. If a recipient fails to meet its household goal by the end
14 of the program period, or if after notice and hearing the Department
15 determines grant funds were used for unauthorized purposes or
16 obtained through material misrepresentation of fact, the Department
17 may require repayment of all or part of the grant disbursed, plus
18 interest at the rate provided in Section 2357 of Title 68 of the
19 Oklahoma Statutes. The Department shall promulgate rules for
20 repayment procedures pursuant to the Administrative Procedures Act.

21 I. Each recipient of a grant under this section shall provide
22 semiannual reports to the Department that include:

23 1. The total number of household applications;

24 2. The total number of approved households;

1 3. The cost per approved household;

2 4. The annual incomes and occupations of approved households,
3 reported in aggregate form;

4 5. The economic impact of the talent recruitment program,
5 including state and local tax revenue and new consumer spending, to
6 the extent such information can be reasonably estimated;

7 6. Certification by a certified public accountant or other
8 independent third party acceptable to the Department verifying
9 household relocations through documentation including lease
10 agreements, utility service transfers, or employment records; and

11 7. If total grant funds exceed One Hundred Thousand Dollars
12 (\$100,000.00), a financial audit of program expenditures.

13 J. A household shall be eligible to receive incentives under a
14 talent recruitment program funded pursuant to this section if:

15 1. The household resides outside the State of Oklahoma at the
16 time the household applies for incentives;

17 2. The household has an individual household income of at least
18 Fifty-five Thousand Dollars (\$55,000.00); and

19 3. The household submits an application to a grant recipient
20 for incentives under the talent recruitment program.

21 K. Beginning two (2) years after the effective date of this
22 section, and every two (2) years thereafter, the Department shall
23 submit a report to the Governor, Speaker of the Oklahoma House of
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1 Representatives, and President Pro Tempore of the Oklahoma State
2 Senate evaluating:

- 3 1. Total grants awarded versus verified household relocations;
- 4 2. Actual versus projected state and local tax revenue
5 generated;
- 6 3. Cost per verified household; and
- 7 4. Net economic impact.

8 L. The Oklahoma Department of Commerce shall promulgate rules
9 as necessary to implement and administer the provisions of this
10 section pursuant to the Administrative Procedures Act.

11 SECTION 2. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 5160.2 of Title 74, unless there
13 is created a duplication in numbering, reads as follows:

14 There is hereby created in the State Treasury a revolving fund
15 for the Oklahoma Department of Commerce to be designated the
16 "Oklahoma Talent Attraction and Relocation Revolving Fund". The
17 fund shall be a continuing fund, not subject to fiscal year
18 limitations, and shall consist of all monies appropriated by the
19 Legislature for the purposes of the Oklahoma Talent Attraction and
20 Relocation Program, any monies received by the Department from
21 federal funds, gifts, grants, donations, or any other source for the
22 purposes of the Program, and any repayments, refunds, or other
23 amounts received by the Department pursuant to Section 1 of this
24 act. All monies accruing to the credit of the fund are hereby

1 appropriated and may be budgeted and expended by the Oklahoma
2 Department of Commerce for the purpose of implementing and
3 administering the Oklahoma Talent Attraction and Relocation Program,
4 including the award and administration of grants, program
5 evaluation, and related administrative costs. Expenditures from the
6 Oklahoma Talent Attraction and Relocation Revolving Fund shall be
7 made upon warrants issued by the State Treasurer against claims
8 filed as prescribed by law with the Director of the Office of
9 Management and Enterprise Services for approval and payment.

10 SECTION 3. This act shall become effective November 1, 2026.
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12 60-2-17125 ZSL 03/11/26
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